

25VECV04381 25VECV04381

County: los-angeles

Division: Civil Law and Motion

Department: T

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Case Number: 25VECV04381 Hearing Date: June 29, 2026 Dept: T

25VECV04381 Sherman v BMW

[TENTATIVE] ORDER: Defendant BMW of North America, LLC's Motion for Summary Judgment is DENIED.

It appears that BMW's counsel did not even read the objections because they were not addressed in the reply leading the court to believe this was just a boilerplate motion and boilerplate reply.

Introduction

Defendant BMW of North America, LLC (Defendant) moved for summary judgment (MSJ) against Plaintiff Andrew Lee Sherman's (Plaintiff) Complaint.

Discussion

An MSJ must be filed and served 81 days prior to the hearing date. (Code Civ. Proc., sec. 437c(a)(2).) With the instant hearing date, 81 days prior is April 9, 2026. The MJS being filed and served on June 3, 2026, makes the MSJ untimely filed and served. The length of notice is mandatory. The Court lacks any discretion to shorten the notice period. (Robinson v. Woods (2008) 168 Cal.App.4th 1258, 1262-1267; McMahon v. Superior Court (2003) 106 Cal.App.4th 112, 116-118.) Because proper notice to the MSJ was not given, notice to the MSJ must begin anew. (Robinson v. Woods, supra, 168 Cal.App.4th at p. 1268.)

The MSJ is DENIED.

IT IS SO ORDERED, OPPOSING PARTY TO GIVE NOTICE.